Certificate in Local Government Studies
(Accredited by NUI)

LESSON 4
Human Resource Management

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Learning Objectives

By the end of this lesson, you should be able to:

- discuss issues relevant to human resources in local government
- describe how local authority staff are recruited, retained and promoted
- explain the industrial relations environment and current developments in human resources

4.0 INTRODUCTION AND OVERVIEW

In order to carry into effect its activities an organisation needs a sufficient level of resources, including material, financial and human. There is a continuing need to develop appropriate levels of expertise and knowledge for personnel at all levels. All staff have to bear in mind that it is only through constructive teamwork that activities can be conducted to best effect. As the economy continues to grow it has become increasingly difficult to retain staff in the local government service. In this context it is essential to develop an integrated human resource strategy from recruitment through to training and development, retention and, ultimately, to the provision of acceptable superannuation arrangements. Organisation-wide human resource management should in turn ensure that staff members are given sufficient responsibility and opportunity to develop their own ideas and creativity. Taking into account the wide range of experience and expertise which staff at all levels possess, the combined effect in terms of ideas generation can be of enormous benefit. Human resource management is not confined to the HR section of your council. It informs all actions by all staff throughout the council.

Given the challenges for the HR function and new priorities that emerge, it is important that issues such as equality, mindfulness and stress management receive policy attention. Policies have to be continually reviewed to ensure that they are sufficiently well designed to support staff in their work having regard to the changing ways we work today. They must also reflect the changing environment of human resource management, taking into account legislative requirements, equality issues, family friendly policies, performance management and measurement and contractual issues. All of these issues bear on the quality of service provided by local authorities and the achievement of the organisation's goals as set down in the Corporate Plan.

Local Authorities in Ireland employ some 32,000 people. These are the local authorities' most valuable resource and have to be managed effectively.

Human Resource Management (HRM) includes:

- recruitment and retention
- staff training and development programmes
- industrial relations
- maintenance of personnel records
- superannuation
- having a partnership approach to change management
- Performance management (PMDS)
- the strategic allocation and reallocation of resources
- workforce planning
- time and attendance monitoring
- payroll and pension functions (MyPay).

4.1 LOCAL GOVERNMENT ACT, 2001

Power to Employ/ Conditions of Employment

All staff are now treated as a single category of employee since the passing of the local Government Act 2001, which did away with an earlier distinction between officers and employees. General employment law now applies to all employees. All staff sign a contract of employment.

A local authority sets the remuneration and conditions of employment of its employees. The appropriate Minister may specify retirement age limits. The appropriate Minister may also specify requirements or conditions and the Local Government Management Agency (LGMA) may issue guidelines, codes of practice or other guidance.

Private Practice

The 2001 Act also provides that "an employee of a local authority shall not engage in any gainful occupation, other than as an employee of the local authority, to such an extent as to impair the performance of his or her duties … in any occupation which might conflict with the interests of the local authority or be inconsistent with the discharge of his or her duties as an employee" (section 159).

Qualifications for Employment

The Minister with responsibility for local government may also under the 2001 Act "declare qualifications … for a specified employment under a local authority or for employments that belong to a specified class, description or grade" (section 160).

Unfair Dismissals Acts 1977 – 2005

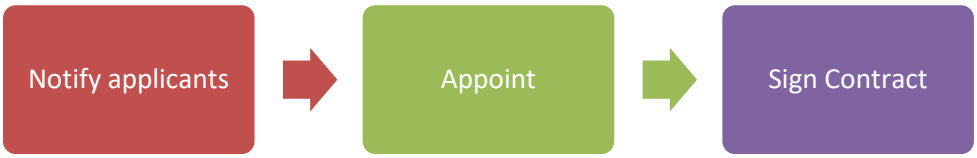
The Unfair Dismissals Acts, 1977 – 2005 apply to all local authority employees other than Chief Executives. Any disciplinary action must comply with agreed Disciplinary and Grievance Procedures. The LGMA provides advice and model disciplinary and grievance procedures. Employers are required to give a notice in writing to each employee setting out the procedure which the employer will observe before and for the purpose of dismissing the employee.

Ethics Framework

Part 15 of the Local Government Act, 2001 sets out an ethics framework specific to Local authority Members, Chief Executives and employees and is applicable generally across all areas of the Local Authorities' work. It includes a duty on both elected members and staff to maintain proper standards of integrity, conduct and concern for the public interest. Relevant employees and members are required to furnish an annual declaration of "declarable interests". In general, there is a requirement to make Declarations of Interest on the part of local Councillors, the Chief Executive, Directors of Service, senior managers (senior executive engineer or above), as well as planning staff of Grade 6 or above or planning staff which require a professional or technical qualification. However declarations of interest are not required from all local authority staff outside these categories. These arrangements and rules on ethics have also been reinforced by subsequent legislation such as the Regulation of Lobbying Act 2015, which applies to representations made by individuals and interests to both local Councillors and certain categories of local authority employee (such as Chief Executives and Directors of Service).

4.2 RECRUITMENT/APPOINTMENT

The recruitment process involves a number of stages and issues which would include some or all of the following. This can be a long process owing to the number of steps involved.



The policies, management guidelines and codes of practice are constantly evolving in line with legislation and circulars in an endeavour to merge all conditions of employment where possible. These policies include areas such as contracts of employment, various types of leave (annual, sick, maternity, adoptive, paternity, parental, force majeure, career breaks), grievance and disciplinary procedures, training and development policies, recruitment, induction, mobility, equality, e-working, retirement and superannuation.

4.2.1 Public Service Staffing Numbers

The Government Strategy document, *Better Public Services – Public Service Transformation 2030 Framework*, identified three pillars to support development and innovation in the Public Service. The "Workforce and Organisation of the Future" pillar identified key actions to promote greater diversity in the workforce, to upskill staff and to develop progressive HR policies to ensure public service organisations remain attractive as places to work.

The Local Authority People Strategy identifies areas for strategic focus and attention, including:

- the integration of workforce planning with business needs

- the need to build skills and capabilities for new services and new ways of working
- responding to the challenges presented by demographics and recruitment.

The Strategy is founded on three priority areas:

1. Building a Workforce of the Future
2. Developing Capacity and Capability
3. Ensuring Effective Management

4.2.2 Public Appointments Service

The Public Appointments Service is the state body responsible for recruitment, assessment and selection services across the Irish public service. It provides recruitment and related human resource advisory services to central government departments, state agencies, local authorities, the Health Service Executive (HSE), An Garda Síochána and other public bodies. It replaced earlier the Local Appointments Commission and recruits for senior positions in local authorities. Its role includes training, advisory and consultancy services to complement the recruitment and selection services.

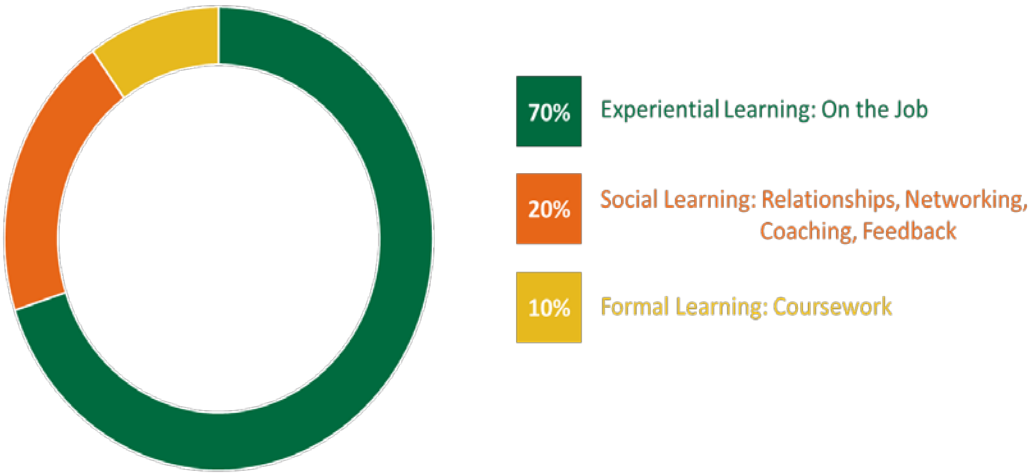
4.3 STAFF TRAINING AND DEVELOPMENT

Developing the skill sets of the local authority workforce helps ensure that it is better managed, more motivated to deliver effective and quality services to the public. To achieve this it is critical that all grades of local authority staff receive lifelong training and development so that staff can respond effectively to factors that are driving the changes in the local government sector, including changing citizen expectations and a constantly evolving legislative framework, both national and European.

Staff training and development are important factors in influencing performance in the workplace and assist staff to satisfy personal and organisational needs through their work. Personal needs include promotion, job satisfaction, motivation, etc., while organisational needs include greater output, efficiency, loyalty, etc. The aim of training and development is to provide the workforce with the skills and information staff require in order to achieve the organisational goals set out in the Corporate and Annual Business Plans. Training can be skills-based, such as courtroom skills, ICT, report writing, supervisory skills, and people skills, or information-based, such as product information or legislation.

It is important to bear in mind, however, that training and development are only two of a number of factors that influence employee performance; other influences include

ability, the existence of adequate resources and the opportunity to perform at the level required. The 70:20:10 Model for Learning and Development is now generally adopted by local authorities and is regarded as best practice. This is illustrated in the diagram below:



The amount of finances allocated to training is critical. For a number of years, local authorities operated on the basis of a target of achieving a minimum spend of the equivalent of 3% of payroll on staff training and development, which has required engaging with staff to identify specific training requirements of particular grades.

It is vital that staff at all levels of the organisation know what their role is and what is expected of them. Staff members who have been promoted need to be given the opportunity to acquire and develop the skills to handle their new areas of responsibility. Change management, personal development, teamwork, performance measurement and management and leadership are all issues which are relevant in the context of reorganisation and reform, and they provide a requirement for training and development programmes which may not have previously existed. In addition, new developments and legislation have introduced new skill requirements and training needs. The training and development programme needs to be sufficiently flexible to identify and adapt to these changing needs.

4.3.1 Performance Management and Development (PMDS)

A Performance Management and Development System (PMDS) was originally introduced across the local authority sector in the late 2000s. It is designed to provide a framework within which management and staff can improve work performance and develop the knowledge and skills of staff.

Each individual should know their role in the organisation and how this role fits into achieving the overall goals of the organisation. This involves having individual Personal

Development Plans (PDP) that link into Team Development Plans (TDP), which themselves link into the overall plan for the organisation – the Corporate Plan. See diagram below.

PMDS delivers on:

- increased clarity about the tasks of each job
- increased understanding of expectations
- increased sense of involvement
- increased understanding of the priority of the organisation
- increased recognition for the contribution of each staff member
- an opportunity to give opinions on the work and the way it should be done
- an opportunity to air concerns about work
- a clearer structure for the planning and organisation of work
- a real opportunity to identify training needs and to discuss career aspirations
- an opportunity to forge a link between the Corporate Plan, Business Plans and the work of all employees.

4.3.2 Performance Indicators

From 2014, the National Oversight and Audit Commission (NOAC) as part of its overall mandate to review the performance of local government also regularly reviews staff

numbers employed by the local authority sector, as well as trends around absenteeism and number of days lost to certified and self-certified sick leave.

A standard Attendance Management Policy developed by the LGMA in conjunction with local authorities has been rolled out to all local authorities.

4.4 LABOUR LAW

The **Terms of Employment (Information) Act, 1994** (as amended) requires employers to provide employees with a written statement of details of their terms of employment. The written statement must include details on the place of work, job title/nature of the work, date of commencement of employment, nature of contract (temporary or fixed-term), pay and pay intervals, hours of work (including overtime), paid leave, incapacity for work due to sickness or injury, pensions and pension schemes, notice entitlements and collective agreements. The Act provides a right of complaint to the Workplace Relations Commission where an employee believes there has been a breach of the Act.

The **Employment Miscellaneous Provisions Act 2018** provides for a requirement that employers provide employees with certain terms of employment after commencing employment; to impose sanctions for certain offences; to further provide for a minimum payment due to employees in certain circumstances.

An updated version of The **Organisation of Working Time Act, 1997** (as amended) in March 2019 resulted in the consolidation of a number of Acts. It sets out the statutory rights for employees in respect of rest, maximum working time and holidays. The maximum average working week is 48 hours. Holiday pay is earned against time worked. All employees earn holiday entitlements from the time work is commenced. The Act provides that most employees are entitled to four weeks' annual holidays for each "leave year" with pro-rata entitlements for periods of employment of less than a year.

The Minimum Notice and Terms of Employment Acts, 1973 (as amended) provide that employees in continuous service with the same employer for a minimum period and who are normally expected to work at least eight hours a week are entitled to a minimum period of notice before the employer can dismiss them. This period of notice varies according to length of service.

The Redundancy Payments Act, 1967 (as amended) imposes a statutory obligation on employers to pay compensation to employees dismissed for reasons of redundancy. Compensation takes the form of a lump-sum payment to the employee based on service and weekly rate of pay (subject to a ceiling).

The **Unfair Dismissals Acts, 1977–2016** provide protection for employees from being dismissed from their jobs by laying down criteria under which dismissals are judged to be unfair. This involves an adjudication system and redress for an employee whose dismissal has been found to be unjustified. The Acts provide that every dismissal of an employee is presumed to have been unfair unless the employer can show substantial grounds justifying the dismissal. For further information on this Act, see the website of the Workplace Relations Commission.

The **Employment Equality Acts, 1998 to 2015** outlaw discrimination in nine Areas: marital status, family status, gender, race / nationality / ethnic origin, age, religion, disability, sexual orientation, and membership of the Travelling Community. They also prohibit sexual harassment in the workplace and in the course of employment, whether by an employer, another employee or by the employer's clients, customers or business contacts. Bullying or harassment on any of the nine discriminatory grounds is prohibited. The legislation applies equally to staff in the public and private sectors.

4.4.1 Equality, Disability, Work-Life Balance and Related Matters

The purpose of recent equality initiatives (both through policy and legislation on equality) is to remove bias from existing procedures and processes, to recognise past inequalities and imbalances, and to take steps to reduce the effects of previous discrimination in order to allow people equal access in employment.

Dignity at Work

Dignity at work policies have been adopted by local authorities to give practical guidance to staff on:

- what is meant by harassment, sexual harassment and bullying in the workplace
- how this unacceptable behaviour may be deterred
- how to raise the awareness of management and staff concerning the identification of the potential for this form of unacceptable behaviour
- what steps to take if it does occur to ensure that adequate procedures are readily available to deal with the problem, to ensure that all parties (complainant and respondent), are treated fairly in resolving the problem and to prevent any recurrence.

Equal Status Act, 2000 (as amended)

Discrimination is described as the treatment of one person in a less favourable way than another person is, has been or would be treated. Discrimination is outlawed on distinct grounds – gender, marital status, family status, sexual orientation, religious belief, age, disability, race, membership of the Travelling community and victimisation.

Disability Act, 2005

The Disability Act, 2005 includes provisions to support the participation of people with disabilities in everyday life. It establishes a statutory basis for 'mainstreaming', which places an obligation on public service providers to support access to services and facilities for people with disabilities, as well as other citizens, to the greatest practicable extent.

Persons with a disability may require and request information in any of the following formats: Standard, Braille, Easy-to-Read, Audio, Large Print and Electronic. Local authorities are obliged, if requested, to provide information in an accessible format.

The primary implications of the Disability Act throughout the local authority sector are:

- the appointment of Access Officers
- the appointment of Inquiry Officers
- access to information for those with disabilities (e.g. communications)
- adherence to codes of practice
- access to services

Protection of Employees (Part-Time and Fixed-Term Work)

The Protection of Employees (Part-Time Work) Act, 2001 provides that a part-time employee cannot be treated in a less favourable manner than a comparable full-time employee in terms of their conditions of employment.

The Protection of Employees (Fixed-Term Work) Act, 2003 also provides that a fixed-term employee cannot be treated in a less favourable manner than a comparable permanent employee in relation to their conditions of employment.

Work/Life Balance – Family Friendly Policies

Family friendly policies are designed to give staff an opportunity to balance their family commitments with their work commitments. Employees of local authorities have a wide range of leave opportunities available. These include maternity leave, parental leave, *force majeure*, work-sharing, career breaks, annual leave, sick leave, adoptive leave, special leave, compassionate leave, study leave and exam leave.

Maternity Protection Acts 1994 & 2004

This legislation provides statutory minimum entitlements in relation to maternity at work, including maternity leave

Paternity Leave & Benefit Act 2016

This Act provides for 2 weeks' paid leave for a new parent (other than the mother of the child). The period of leave must be a continuous period of 2 weeks. The leave is to be taken not earlier than the date of confinement or day of placement if adoption, and not later than 26 weeks after such date or day.

Parental Leave Act, 1998-2019

Following a 2019 amendment, this legislation gives each parent an entitlement to 22 weeks unpaid leave per child for each child born or adopted. The leave does not have to be taken in one block of 22 weeks. Six weeks' notice must be given of intention to take parental leave that must be availed of prior to the child's 13th birthday or 16th birthday in the case of a child with disabilities.

Adoptive Leave Acts, 1991 – 2005

This Act increased the adoptive leave period to 16 weeks.

Work-sharing Scheme

The Work-sharing provides for a wider range of attendance patterns. The minimum period for which a person may opt to workshare is twelve months. Application for participation in the work-sharing scheme are considered in respect of:

- family or caring responsibilities
- educational purposes
- self-employment
- facilitation of staff member that is recognised as having exceptional sporting or cultural ability in their pursuit of a particular goal in their field
- assisting in the transition to retirement
- assisting in meeting the employee's individual circumstances.

Shorter Working Year Scheme

This replaced the Term Time Leave Scheme. Term Time provided for unpaid leave specifically for the purpose of allowing working parents or carers match their working arrangements to the main summer holidays of their children or to care for a family member who has a disability that gives rise to the need for care on a continuing or frequent basis. The Shorter Working Year Scheme is to assist employees to balance their working arrangements with outside commitments, and can be applied for any time of the year.

Bereavement Leave

Circular Letters have been issued (e.g. LG (P) 2/2017) which contain details on the number of days that can be taken as paid leave when spouses, partners, or children die.

Carer's Leave (Carer's Leave Act, 2001)

This legislation addresses rights to unpaid leave to look after someone in need of full-time care.

Career Breaks

A career break may be granted for domestic responsibilities, further education, travel abroad, or self-employment. Changes introduced provide that up to three career breaks may be taken over ten years. A second and third career break may not be taken until the employee has served for a period equal to the duration of the initial or second break.

4.5 INDUSTRIAL RELATIONS

Industrial relations is concerned with the formal and informal relationships which exist between employers and employees (and their representatives), and dealing with their differing interests and conflicting demands that can arise. It involves, among other things, the implementation of agreements on pay and conditions of work (including those agreed nationally or locally), dealing with union claims, and preparation of cases for the Labour Court and Workplace Relations Commission hearings.

Industrial relations also involve the important informal process of continuous interaction between supervisors and the supervised, and between colleagues. It is important to appreciate that industrial relations is a continuous process that involves personnel at all levels in the organisation.

The system of industrial relations in Ireland can be characterised as essentially voluntary in nature. This implies that there is a consensus amongst both employers and employees that the terms and conditions of employment of workers should be determined by the process of bargaining between an employer or employers' association on the one hand and trade unions on the other. Under this process, standard matters such as wages or hours of work are determined and, in addition, some collective agreements lay down procedural rules which govern the conduct of industrial relations. Collective bargaining is a key source of regulation in the employment relationship.

Over the years, of course, legislation has also been adopted in areas such as holidays, working hours, minimum notice, redundancy, dismissals and employment equality, which provide for minimum standards that may be improved upon by collective bargaining but which remain in force as minimum standards – see section above.

The state therefore has a role in facilitating the collective bargaining process in industrial relations through legislating for minimum standards and also by establishing different institutions to adjudicate and support the resolution of disputes between employers and employees. These institutions include the:

- Workplace Relations Commission
- Labour Court

4.5.1 Workplace Relations Commission (WRC)

The Workplace Relations Commission (WRC) is an independent, statutory body which was established in 2015. Under the Workplace Relations Act, 2015 (section 11), the WRC's responsibilities include:

- "promoting the improvement of workplace relations, and maintenance of good workplace relations
- promoting and encouraging compliance with relevant legislation
- providing guidance in relation to compliance with relevant codes of practice".

Most complaints over employment law and industrial relations are referred in the first instance to the WRC. The WRC replaced several earlier employment and dispute resolution structures, such as the Rights Commissioner, the Equality Tribunal and the Labour Relations Commission.

4.5.2 Labour Court

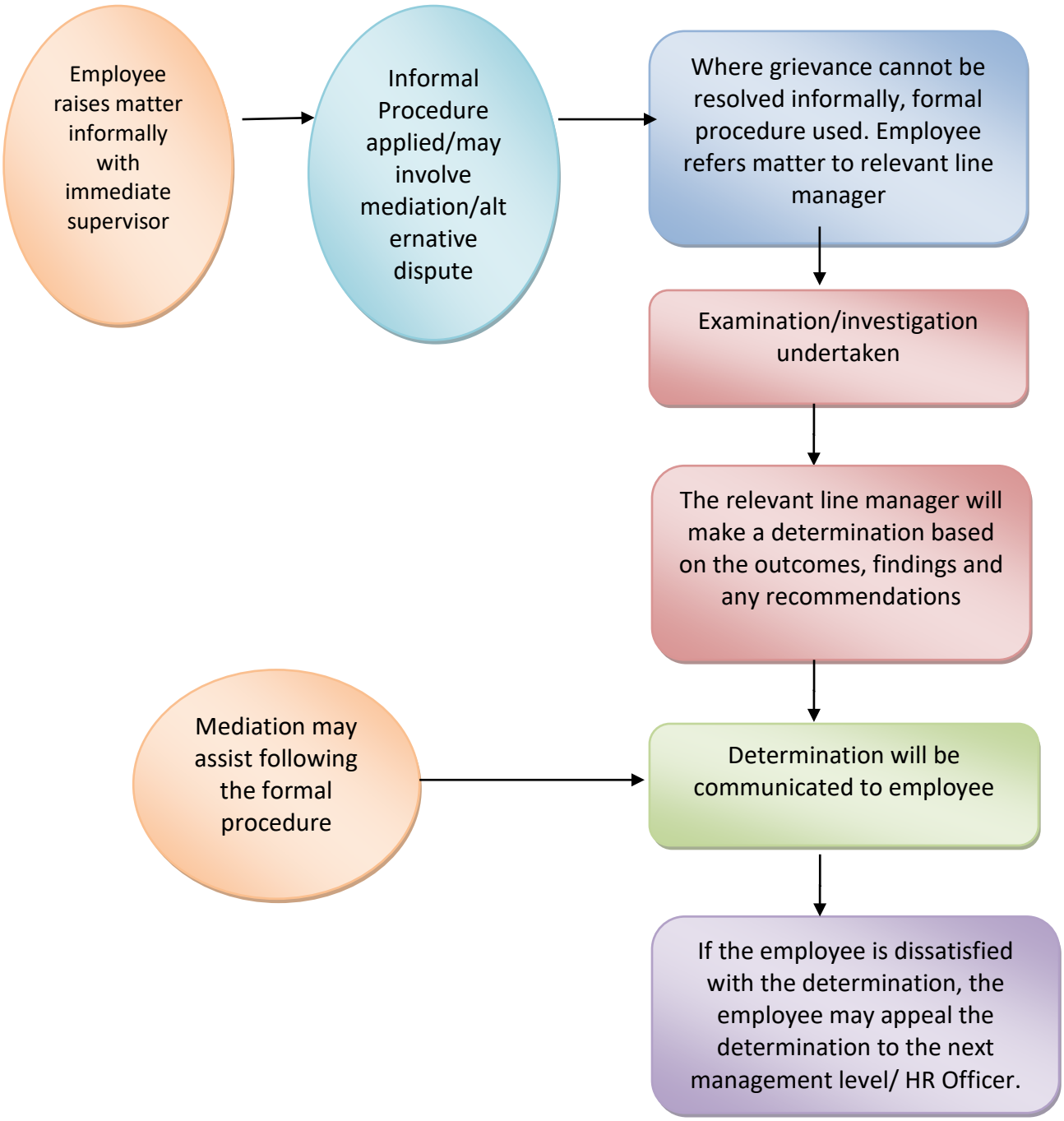
The Labour Court provides a means for the formal investigation of industrial disputes, including where these cannot be resolved by the WRC. The Court consists of a Chairperson, Deputy Chairpersons and ordinary members, representative of employers and workers. Some of the main functions of the Court are:

- investigating disputes affecting the public interest
- hearing appeals of WRC recommendations/ decisions made under the Industrial Relations Acts
- investigating complaints of breaches of codes of practice made under the Industrial Relations Act
- examining the terms and conditions of employment

The Court, having investigated a dispute, may make a recommendation setting forth its opinions on the merits of the dispute and the terms on which it should be settled.

4.5.3 Grievance and Disciplinary Procedures

The purpose of the disciplinary procedure is to have agreed procedures in place to allow management where possible to address issues such as under performance, lack of co-operation and poor conduct. Where this fails the disciplinary action through warnings up to and including dismissal may apply. The procedures set out a code of practice for all employees working in the local authority sector. These procedures place an emphasis on the role of line managers in the management of staff and in taking responsibility for addressing grievance and disciplinary issues in their respective areas. This creates a major training requirement and such training is on-going on a regional basis. The Grievance Process is outlined below:



The steps of the Disciplinary Procedure are as follows. In general, specific shortcomings on the part of a member of staff in meeting their job requirements or standards should be initially brought to his or her attention by the immediate supervisor through informal

conversations, along with the offer of assistance towards achieving the necessary improvements.

Based on procedures in place within the local government system, disciplinary action can include the following steps taken in sequence:

- a verbal warning
- a written warning
- a final written warning
- some other appropriate disciplinary action short of suspension without pay
- suspension without pay
- transfer to another task or section
- demotion
- some other appropriate disciplinary action short of dismissal
- dismissal.

4.6 SAFETY, HEALTH AND WELFARE AT WORK

The Safety, Health and Welfare at Work Act, 2005 replaced the previous Safety, Health and Welfare at Work Act, 1989 which had extended legislative protection in safety, health and welfare matters to include all places of work and all employers, employees and the self-employed. The emphasis is on preventing accidents and ill health from occurring by identifying workplace hazards and putting appropriate safeguards in place.

Under the Act, a series of requirements are placed on employers, employees and the self-employed designed to ensure that their workplace and processes at work are safe. Specific obligations are also placed on those designing, importing, supplying or manufacturing articles or substances for use at work.

Employers are required to prepare Safety Statements for their organisations and workplaces, to carry out training and provide Safe Work Practice Sheets. Employees can nominate Safety Representatives to represent their interests.

4.6.1 Health and Safety Authority (HSA)

The Safety, Health and Welfare at Work Act, 1989 provided for the establishment of the *National Authority of Occupational Safety and Health (HSA).* The Health and Safety Authority (HSA) was established in 1989 as a tripartite body representative of workers, employers and the state, which is charged with responsibility for the administration of the occupational safety and health legislation.

The HSA is the body responsible for the administration and enforcement of health and safety at work requirements in Ireland. It monitors compliance with the relevant health and safety legislation in workplaces, and can take enforcement action, including prosecutions. In addition to its enforcement role, the HSA also provides information and advice to employers, employees and self-employed on different issues related to workplace health and safety, and promotes education, training and research in the field.

Regulations are made under the 2005 Act to update the requirements on employers and employees with regard to health and safety, including requirements applying to areas of work such as construction, chemicals, quarries, and exposure to asbestos. Provisions on health and safety have also been adopted on a variety of issues, such as the use of work equipment, personal protective equipment, manual handling of loads, display screen equipment, electricity, work at height, noise, vibration, protection of young persons, pregnant, post-natal and breastfeeding employees, night work and shift work, safety signs at places of work, first aid guidance and explosive atmospheres at places of work. The HSA has also issued codes of practice in a wide range of areas as diverse as roadworks and road maintenance, chemicals, indoor air quality, scaffolding, and bullying at work. There are specific procedures governing the notification to the HSA of accidents and dangerous occurrences. Regulations impose obligations on employers with regard to the evaluation and reduction of the exposure of employees to occupational risk and hazards and the development of risk prevention policies. Employees are also obliged to co-operate with employers in matters relating to the protection of their own safety and health at work.

4.6.2 Safety, Health & Welfare at Work Act, 2005

The basic principles of health and safety law remain following the passage of the 2005 Act, albeit that the 2005 Act included more detailed and stringent provisions compared to the 1989 Act. Some of the changes were:

- more stringent penalties (including fines and / or prison sentences) for serious breaches of health and safety regulations
- an on-the-spot fines system for certain safety offences
- drug and alcohol testing for employees.

Significant duties imposed on employers under the 2005 Act are to:

- manage health and safety
- take measures as far as possible to prevent risk to employees' health from exposure to noise, vibration or ionising or other radiation or any other physical agent

- provide for their staff training and information on health and safety for employees in a way that is reasonably likely to be understood, including when starting employment and being transferred to a new area of work
- inform employees of emergencies and dangers in their place of work
- prepare risk assessment and safety statements, and review same when there has been a significant change
- bring safety statements to employees' attention on a regular basis and have the safety statement, or a relevant extract from it, available in the workplace
- require any organisations which it contracts services from to have an up-to-date safety statement
- co-operate with other employers where workplaces are shared.

Duties imposed on employees under the 2005 Act (section 13) include:

- not to be under the influence of an intoxicant to the extent that they endanger their own or their colleagues' safety
- submit to tests for intoxicants, if reasonably required, where tests are carried out under the supervision of a registered medical practitioner
- cooperate with employers
- not to engage in improper behaviour that could endanger the health and safety of the employee or other employees
- attend training
- if they are suffering from a disease or illness that adds to risks, to inform their employer.

Company directors and managers can be held liable and may be prosecuted in circumstances where they are found to have contributed to an offence under health and safety rules. Employees can also be found guilty of an offence if they report to work intoxicated, and they may be subjected to testing by their employers to ensure compliance.

4.7 PARTNERSHIP

During the period when regular national partnership agreements were negotiated by government, employers, trade unions and other interests (roughly running from 1987 to 2009), local government was affected by several initiatives under these agreements. This included initiatives to try to promote what was referred to as a 'partnership approach' to the workplace, including local authorities as workplaces. Partnership referred to a relationship between management, employees and their trade unions that is characterised by employee participation and consultation, sharing of information, developing shared objectives, nurturing greater mutual co-operation and trust, joint problem-solving and consensus-based decision-making. It provided

increased opportunities for employees at different levels within organisations to participate in decision-making. The objective of partnership was to achieve joint-ownership by management, unions and staff and to replace the adversarial approach to change with a more open co-operative process based on effective consultation and participation by all.

Local Partnership Committees had operated in each local authority, which were jointly chaired by unions and management and were formed to steer the partnership process in each local authority. Committees were intended to be a forum for the sharing of information, ideas and proposals for improvement, and the identification of opportunities for partnership. Based on joint problem-solving and consultation with stakeholders, partnership committees were designed to try to achieve a consensus between management and staff on the implementation of change. These were often supplemented by working groups established to work on specific partnership projects.

4.8 SUPERANNUATION

Superannuation deals with the pension entitlements of employees. This is a complex area, and there are numerous circular letters and schemes setting out the details that apply. Most employees employed prior to 2004 are members of the Local Government (Superannuation) (Consolidation) Scheme, 1998. New entrants after that date have the provisions of the Public Service Superannuation (Miscellaneous Provisions) Act, 2004 applied to them. One substantive change in conditions relates to the retirement age – for new entrants the *minimum* retirement age is 65 and there is no compulsory maximum retirement age. Contributions are paid on remuneration – the rate of contribution depends on the social welfare entitlement of the employee. Extra contributions are paid in respect of membership of Widows & Orphans/Spouses & Children Schemes.

Entitlements are calculated based on pay and service. In some cases added years may apply, e.g. retirement on grounds of permanent infirmity, professional qualifications, etc. Anyone who leaves the service, having had two years reckonable service, now has their benefits preserved if they do not have an immediate entitlement to superannuation benefits – previously this applied after five years' service.

Further changes arose with the introduction of a new Public Service Pension scheme introduced in 2013. The legislation giving effect to the Scheme is the Public Service Pensions (Single Scheme and Other Provisions) Act 2012 (commonly referred to as the 'Single Scheme'). The Single Scheme applies to employees employed in the public service from 2013, as well as to former public servants returning to the public service after a break of more than 26 weeks. The Single Scheme provides a pension and lump sum based on career average pensionable remuneration.

4.8.1 Personal Retirement Savings Accounts (PRSAs)

The Pensions (Amendment) Act, 2002 provided for the introduction of Personal Retirement Savings Accounts (PRSA) with the view to extending pensions coverage to as many people as possible. PRSA products are regulated, and this process is undertaken jointly by the Revenue Commissioners and the Pensions Board. Employing authorities must enter into a contract with a PRSA provider and notify "excluded employees" that they have a right to contribute to a standard PRSA. They must allow the PRSA provider reasonable access to such excluded employees at their work place and make deductions from payroll at the request of such excluded employees in respect of the PRSA.

4.9 CONCLUSION

The human resource function is an extremely important area within the local authority service. It is one which does not always receive the attention it deserves as it is not a service to the community which the local authority serves, but rather a service to the local authority itself. The areas of employment law, industrial relations and superannuation are complex and each case is different, requiring individual attention. These are personnel issues and deal with the entitlements of individuals. However, it is equally important that the whole area of human resource management is also developed and implemented as it is at the core of strategic management, and ensuring local government staff are best placed to meet the goals and objectives of the local authority in different areas of service provision.

KEY CONCEPTS

- Public Appointments Service (PAS)
- Human Resource Management
- Performance Management and Development System(PMDS)
- Unfair Dismissals
- Ethics Framework
- Superannuation
- Health and Safety at Work
- Health and Safety Authority (HSA)
- Local Government Management Agency (LGMA)
- Workplace Relation Commission (WRC)
- Labour Court

STUDENT ACTIVITIES

1. Reflect on why it is important to have an effective human resource policy.

2. Check to see if your local authority has a local HR / people strategy. To what extent do you think this reflects the needs and role of the local authority today?

3. Has your local authority prioritised particular areas in terms of training and development in recent years?

4. How have overall staff numbers evolved in your local authority over the past decade? Has it been difficult to recruit new staff for specific roles or generally? Reflect on some of the changes that might have affected recruitment in recent years.